☒ **District Court** ☐ Denver Juvenile Court **Delta** County, Colorado Court Address: 501 Palmer Street, Suite 338, Delta, CO 81416	▲ **COURT USE ONLY** ▲
Petitioner: PETE McCARTHY, *v.* **Respondent:** SAMIRA M. VETTER, in her official capacity as Town Clerk of the Town of Paonia, Colorado.	**Case Number:** _____ **Division:** _____ **Courtroom:** _____
Attorney or Party Without Attorney (Name and Address): Pete McCarthy, 119½ Dorris Avenue, Paonia, CO 81428 Phone Number: (415) 623-9773 E-mail: petefromsf@gmail.com FAX Number: N/A Atty. Reg. #: *Pro Se*	

EXHIBIT C

Town Clerk Rejection Letter — April 13, 2026

Letter from Samira M. Vetter, CMC, Town Clerk, to Peter McCarthy and Melayna Rosa, dated April 13, 2026, rejecting "Paonia Surveillance Camera Prohibition Ordinance" (received April 6, 2026).

2 pages.

Town of Paonia
Office of the Town Clerk
Samira M Vetter, CMC
214 Grand Ave.
P.O. Box 460
Paonia, CO 81428
O: (970) 527-4101
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April 13, 2026

Peter McCarthy
Melayna Rosa
119 ½ Dorris Ave
Paonia, CO 81428

Re: Paonia Surveillance Camera Prohibition Ordinance

The Ballot measure is hereby rejected. Please see the following explanation.

The proposed initiatives seek to amend or supplant administrative decisions and actions. Decisions that require careful study and specialized expertise, as well as discretionary judgment, generally are administrative in nature, and thus are outside the scope of the initiative power reserved to the people under state constitution; additionally, the government decision to place security cameras for the security of Town property and Town assets is not the implementation of public policy, but instead, such decisions are executive acts.

The attached petition is administrative in nature in that it seeks to control the Town's executive function in the management, operation, and security of Town property and assets.
The proposed ordinance encroaches on the administrative processes reserved to the administrative staff of the Town as authorized by the BOT, and allowing the initiative process to either dictate or negate executive actions normally undertaken by Town staff has been determined to be a misuse of the initiative process and contrary to the initiative rights established by the Colorado Constitution, Article V, Section 1, ¶ 5.5.

Therefore:

1. Prohibiting the installation, operation, or maintenance of surveillance cameras on public property are purely executive acts, and thus, the proposed measure cannot be placed on the ballot.

2. Requiring the removal of surveillance cameras on public property are purely executive acts, and thus, the proposed measure cannot be placed on the ballot.

3. The body-worn camera exemption is only applicable to the prohibition delineated in the proposed measure and does not stand alone as proposed measure and therefore cannot be individually severed from the ordinance intended purpose.

Samira M Vetter, CMC
Paonia Town Clerk